



Fixed points and well-ordered societies

Politics, Philosophy & Economics

2023, Vol. 22(2) 197–212

© The Author(s) 2023

Article reuse guidelines:

sagepub.com/journals-permissions

DOI: 10.1177/1470594X231153983

journals.sagepub.com/home/ppe**Paul Weithman***University of Notre Dame, IN, USA*

Abstract

Recent years have seen a certain impatience with John Rawls's approach to political philosophy and calls for the discipline to move beyond it. One source of dissatisfaction is Rawls's idea of a well-ordered society. In a recent article, Alex Schaefer has tried to give further impetus to this movement away from Rawlsian theorizing by pursuing a question about well-ordered societies that he thinks other critics have not thought to ask. He poses that question in the title of his article: "Is Justice a Fixed Point?" Though Schaefer is critical of Rawlsian political theorizing, I shall contend that his arguments also suggest two paths forward for those who would follow the Rawlsian approach. First, the intellectual devices Schaefer deploys help those who would continue the Rawlsian project to see, and precisely to chart, the next step that that project needs to take—a step necessitated by a concession Rawls himself made late in the development of political liberalism. Second, the clarity and economy with which Schaefer lays out his alternative to the Rawlsian approach make it possible to state some fundamental Rawlsian challenges to a form of theorizing that has considerable appeal to many critics of that approach.

Keywords

fixed point, Kakutani, static theory, dynamic theory, Rawls, post-Rawlsian political theory, well-ordered society, Rawlsian equilibrium, Gerald Gaus

Recent years have seen a certain impatience with John Rawls's approach to political philosophy, at least in some quarters, and calls for the discipline to move beyond it.¹ A notable source of dissatisfaction is what Brian Kogelmann has described as "an unchanging feature of John Rawls's thought": "that we [are to] theorize about well-ordered

Corresponding author:

Paul Weithman, Department of Philosophy, University of Notre Dame, Notre Dame, IN 46556, USA.

Email: pweithma@nd.edu

societies.”² Rawls claimed that the well-ordered society of *A Theory of Justice*³ would have a number of morally desirable features. One such feature is stability—the propensity of a society, once well-ordered, to remain so over time. Critics, including Kogelmann, have argued that a well-ordered society would not have the features Rawls claimed for it⁴—stability very much included⁵—and that political philosophers should shift their focus as a result.⁶ In a recent article, Alex Schaefer has tried to give further impetus to this movement away from Rawlsian theorizing by pursuing a question about well-ordered societies that he thinks other critics have not thought to ask. That question is the one he poses in the title of his article: “Is Justice a Fixed Point?”⁷

Schaefer’s article falls into two parts. In the first part, Schaefer provides what he thinks are powerful considerations in favor of a negative answer to his title question. Because well-ordered societies that retain the property of well-orderedness over time are, in that respect, in stasis, Schaefer calls the study—including the critical study—of stable well-orderedness “static theory.” He contends that a negative answer to his title question casts doubt on the viability of static theory by casting doubt on a claim he thinks static theorists assume. That claim, which I shall call “the equilibrium claim,” is that well-ordered societies are in equilibrium. In the second part of his article, Schaefer sketches the “dynamic theory” he thinks should be pursued once the equilibrium claim is called into question.

Though Schaefer is critical of Rawlsian political theorizing, I shall contend that his arguments suggest two paths forward for those who would follow the Rawlsian approach.

First, the Rawls of *A Theory of Justice* is among those who make a version of the equilibrium claim. The intellectual devices Schaefer deploys in his critique of that claim help those who would continue the Rawlsian project to see, and precisely to chart, the next step that that project needs to take—a step necessitated by a concession Rawls himself made late in the development of political liberalism. That concession has attracted considerable attention, but the step it necessitates has not been described in the literature, let alone taken. One of the ways Schaefer’s analysis advances discussion of the Rawlsian project is by helping bring that step to light.

Second, the clarity and economy with which Schaefer lays out dynamic theory make it possible to state what I take to be some fundamental Rawlsian challenges to a form of theorizing that has considerable appeal to many critics of the Rawlsian approach.

I shall begin with some preliminary remarks about what I have called “the equilibrium claim” before turning to Schaefer’s argument against it.

The equilibrium claim

I observed above that a number of Rawls’s recent critics have argued that a well-ordered society—what Kogelmann averred is the “unchanging” object of Rawlsian political theory—would not be stable. Schaefer may initially seem to be taking aim at a different group of critics, for he begins his article by noting that “Rawls has inspired legions of political theorists to fixate on the comparative stability of *different conceptions of justice*” rather than “of well-ordered societies.” This difference in phrasing does not, however, imply that Schaefer has a different set of targets in view, for in *A Theory of Justice*, Rawls said that

a society is well-ordered when it is not only designed to advance the good of its members but when it is also effectively regulated by a public conception of justice. That is, it is a society in which (1) everyone accepts and knows that the others accept the same principles of justice, and (2) the basic social institutions generally satisfy and are generally known to satisfy these principles.⁸

So in arguing that a well-ordered society would not be as stable as Rawls seemed to claim, the critics of Rawls to whom I referred are arguing that a well-ordered society would not be as stably regulated by the same public conception of justice as he said. They are therefore arguing, in effect, that society's conception of justice would not be sufficiently stable, just as Schaefer implies that they do.

Schaefer continues immediately "within this discussion, theorists typically examine different justice equilibria." But, he says,

[t]his perspective on justice ... makes nontrivial assumptions about the nature of social-moral systems. To examine the properties of an equilibrium state, such as stability, one must first justify the assumption of an equilibrium state. Before discussing stability, the theorist must discuss existence.⁹

In fact, Schaefer thinks, some of the theorists who study stability—including Rawls's critics—have simply assumed what I called above "the equilibrium claim," according to which the well-ordered societies they study are in equilibrium. In doing so, they have assumed, rather than argued for, the existence of equilibria. The question Schaefer presses is what grounds they have for the assumption. He observes that "the standard approach in the social sciences" to showing the existence of equilibria is "to apply Kakutani's [fixed point] theorem."¹⁰ Schaefer devotes the first part of his article to questioning the equilibrium claim by arguing that those who make the claim cannot use Kakutani's theorem to ground it. To see how Schaefer's argument goes, we need to see how he introduces and uses the theorem.

Kakutani's theorem

Kakutani's theorem implies that if we are given any closed, convex set A in a Euclidean space, then any function f with a closed graph that maps points of A onto points of A will map at least one point of A onto itself—that is, for at least one point x in A , $f(x) = x$.¹¹ In Schaefer's hands:

- We are given an n -dimensional space of the reals R^n . This is the Euclidean space to which the implication of the theorem refers.
- Schaefer says "Let A be a set of points in R^n that contains all possible 'justice states' of society with n being the number of justice-relevant parameters. Hence, every state of society is described by a vector of length n , which is why A is a subset of R^n ."¹²
- Schaefer takes the function f to be a "transition function" that "refers to the process that takes society from its public conception [of justice], through the institutional manifestation of that public conception, and back to a [possibly] new public

conception.” That is, f is a function that tracks social transition over time by mapping every justice state—that is, every point in A —to a (possibly different) point in A .

- If f has a fixed point, and so maps a point in A to itself, then that point is an equilibrium point. As Schaefer says “[t]his idea of a fixed point is simply a way of formalizing the idea of an equilibrium.”¹³

For ease of exposition, I will assume that there are just two justice-relevant parameters: the extent to which the representative citizen enjoys basic rights and liberties (assuming for the sake of argument that it is possible to construct an index), and the size of the social minimum. So I shall take R^n to be a two-dimensional space. Each point in that space has two coordinates, the first of which indicates the magnitude on the basic liberties dimension and the second of which indicates the magnitude of the social minimum.

Schaefer says that “a ‘justice state’, x , refers to some publicly held conception of justice.” This claim about the reference of the term “justice state” is puzzling. On the Rawlsian view, at least, a conception of justice includes principles of justice and the philosophical apparatus that justifies those principles. So I take Rawls’s own conception to include his principles of justice, the original position, the conception of persons as free and equal, and more.¹⁴ But once we see that a conception of justice is a theoretical construction, it is not obvious how the term “justice state” could refer both to an ordered pair of real numbers and a conception of justice. It must refer to one or the other, but which one?

When Schaefer says that the set A is “a set of points in R^n ”—here R^2 —“that contains all possible ‘justice states,’” I take him to mean that A contains all *and only* possible justice states. To understand the connection Schaefer asserts between justice states understood as ordered pairs and conceptions of justice, I shall take him to mean that A contains all and only the ordered pairs which are picked out as just by some conception of justice. This reading makes it possible to tie the informal statement of the equilibrium claim I gave above to the formal notions used in the expression of Kakutani’s theorem: a well-ordered society is in equilibrium just in case the point (or points) picked out as just by the conception which well-orders it is an equilibrium or fixed point of its transition function.¹⁵

I assume that no conception of justice picks out as just a point with a negative coordinate. But whether A includes all of the northeast quadrant of R^2 or is a proper subset of it depends upon whether for any point in that quadrant, there is a conception of justice that shows it to be, or explains why it is, just. Whether there is depends upon what conceptions of justice there are. If, as seems plausible, there is a limit to the index of basic liberties, then A is a proper subset of the northeast quadrant of R^2 . But even if set A is finite, indeed even if it is finite and quite small,¹⁶ the multiplicity of points in it suggests that there are a multiplicity of conceptions of justice that can well-order a society. This multiplicity, in turn, means that there are a number of well-ordered societies to which the equilibrium claim could refer, and so a number of versions of that claim. I shall return to this matter shortly. But first, recall that Kakutani’s theorem says the transition function f has a fixed or an equilibrium point if certain formal conditions are satisfied.

Schaefer’s argument against the equilibrium claim proceeds by relaxing some of those conditions and interpreting the consequences. To take just one of his examples, Schaefer

imagines that the graph of the transition function from one justice state to another is discontinuous. In a social process which exemplifies this discontinuity, “[a] public conception of justice might change slowly and continuously, like a stick gradually bending into an arc, until it reaches a critical point where the stick snaps, disrupting the continuous trend that preceded this new state.”¹⁷ If a well-ordered society’s movement through justice space can be disrupted in this way, then its transition function can fail to satisfy one of the conditions of Kakutani’s theorem. In that case, Schaefer avers, there is no guarantee that the function has a fixed point or that the society is in equilibrium.

After mustering this and other examples, Schaefer says of Kakutani’s conditions

relaxing any one of [them] allows for counterexamples; we can find some system in which no equilibrium exists. If these counterexamples, once interpreted in concrete terms, sound like plausible descriptions of our own social-moral systems, then we have reason to doubt that there exist any fixed points of justice.¹⁸

Schaefer does not claim to have *proven* that there are no fixed or equilibrium points in “our own social moral-moral system[s]” movement through justice space. But he does claim to have given us reason to doubt that there are. And if “we have reason to doubt that there exist any fixed points of justice,” then—Schaefer thinks—we have reason to doubt the equilibrium claim. So he says:

The argument, therefore, aims to shift the burden of proof. If there are plausible construals of society in which no justice equilibrium exists, then the theorist may not simply assume that these fixed points of justice exist. The theorist must prove this, or at least provide some reason for us to believe it.¹⁹

The two passages I have just quoted, which have captured the attention of two of Schaefer’s critics,²⁰ are unhappily misleading. The conditions of Kakutani’s theorem are sufficient to guarantee the existence of a fixed point, but they are not necessary.²¹ As we shall see, a given justice state can be shown to be an equilibrium state without appeal to Kakutani’s theorem. So what Schaefer should have said in the first passage is not that “we have reason to doubt that there exist any fixed points of justice” but rather that “we have reason to doubt that the existence of fixed points of justice can be shown by ‘the standard approach in the social sciences’.”

Schaefer is surely correct to imply, in the second quoted passage, that a theorist who makes the equilibrium claim should be prepared to defend it and the existence claim that it presupposes. But this is not because a burden of proof has been shifted to her by Schaefer’s arguments. The burden of proof is one she has always been obligated to bear.²² And so Schaefer should have dropped the sentence about the burden of proof in the second passage and said that theorists who make the equilibrium claim “should ‘provide some reason for us to believe’ equilibria exist, but they have not done so and the counterexamples referred to in the first passage give us some reason to doubt that such reasons can be supplied by the standard approach.” Indeed, this is roughly how Schaefer *does* express the conclusion of the first part of his paper in a summary statement.²³

Versions of the equilibrium claim

Though the conclusions Schaefer's arguments support are more modest than he sometimes asserts, the arguments themselves are very illuminating. We can see what they illuminate by seeing which—if any—of the theorists who Schaefer says make the equilibrium claim have failed to defend it.

So far, I have said that according to that claim, well-ordered societies are in equilibrium. Because a society is well-ordered just in case it is effectively regulated by a public conception of justice, the phrase “societies that are effectively regulated by public conceptions of justice” can be substituted for the phrase “well-ordered societies” in the equilibrium claim. The result of the substitution is:

(EC) Societies that are effectively regulated by public conceptions of justice are in equilibrium.

As we saw when I discussed membership in justice space A , there are a number of possible public conceptions of justice. There are therefore a number of versions of (EC). I shall list five that will prove to be of interest

The first says:

(EC₁) Societies that are effectively regulated by any possible public conception of justice are in equilibrium.

(EC₁) may seem implausibly strong, since it implies that a society occupying any point x at all in justice space is in equilibrium, provided that that society is well-ordered by a conception that picks out x as just. So let us consider a weaker version.

Call a conception of justice “basically liberal” if it requires that the index of basic liberties enjoyed by the representative citizen be at or above some reasonably high threshold, and if it allows but does not require a social minimum. Such conceptions pick out as just any points in justice space with x -coordinates that surpass the threshold, regardless of the value of their y -coordinates. The possibility of basically liberal conceptions suggests a second version of the equilibrium claim, which says:

(EC₂) Societies that are effectively regulated by basically liberal public conceptions of justice are in equilibrium.

What I shall call “mixed conceptions of justice” resemble basically liberal conceptions in requiring that the index of basic liberties be at or above a reasonably high threshold, but they depart from basically liberal conceptions in requiring a social minimum, albeit one that may not be particularly high.²⁴ Mixed conceptions, therefore, pick out as just only those points in justice space both of whose coordinates are greater than or equal to their respective thresholds. I take the US to be a welfare state with distributive policies that have conformed to different mixed conceptions of justice at different times. This suggests a version of the equilibrium claim which says:

(EC₃) Societies that are effectively regulated by any of the mixed conceptions of justice that have regulated the US in recent decades are in equilibrium.

Finally, consider two Rawlsian versions of the equilibrium claim.

The first refers to Rawls's own conception of justice, justice as fairness. Rawls's second principle imposes conditions on permissible social and economic inequalities. Neither of the axes of the justice space I discussed above measures such inequalities, so justice as fairness might not seem to pick out any points in that space. But in *Political Liberalism*, Rawls grants that while his different principle is not essential to a just constitution, a social minimum is.²⁵ So I shall take justice as fairness to impose high thresholds on both the index of basic liberties and the social minimum, and to pick out as just a point or points in justice space after all. There is therefore a possible version of the equilibrium claim which says:

(EC₄) Societies that are effectively regulated by justice as fairness are in equilibrium.

In later writings, Rawls introduced the idea of liberal political conceptions of justice that satisfy three conditions. Those conceptions (i) identify basic liberties, (ii) give those liberties priority of some kind over concerns of the general welfare, and (iii) assure citizens adequate all-purpose means to make intelligent use of their liberties.²⁶ Call these conceptions "Rawlsian liberal." They pick out more points as just than justice as fairness, and may pick out some that are picked out by basically liberal and mixed conceptions, though because the latter two allow low or no social minima, they pick out some points as just that Rawlsian liberal conceptions do not. Thus there is a version of the equilibrium claim, distinct from the previous four, which refers to Rawlsian liberal conceptions and says:

(EC₅) Societies that are effectively regulated by Rawlsian liberal conceptions of justice are in equilibrium.

We shall see shortly that (EC₅) requires some clarification. For now, note that (EC₁)–(EC₅) refer to quite different sets of conceptions of justice, and so to well-ordered societies that differ in significant respects. It may be that some conceptions have resources which allow—or which cause—the societies they well-order to achieve and remain in equilibrium, while others do not. This is a possibility that the critics of Rawls whom Schaefer targets have often failed to consider. The result, I think, is that their arguments against the stability of Rawls's own well-ordered society are not as telling as they take them to be. More important for present purposes, once we distinguish various versions of the equilibrium claim, we need to ask which versions are assumed by Schaefer's targets, and against which versions his fixed point arguments are directed.

One of Schaefer's targets is Hun Chung. Chung says that he "models[s] ... Rawls's well-ordered society facing a crisis" to raise questions about its stability.²⁷ But by "Rawls's well-ordered society," all he seems to mean is any well-ordered society whatever—that is, any society that is effectively regulated by a public conception of justice. His argument does not seem to turn on the well-ordered society he subjects to the crisis being one of those referred to in (EC₂), (EC₃), (EC₄), or (EC₅). So perhaps Chung

assumes (EC₁). If so, then Schaefer seems to be correct that he needs to justify that assumption.

Schaefer also mentions Kevin Vallier and John Thrasher. They argue that “Rawls’s model of a well-ordered society is defective,” that “we must modify the idea of the well-ordered society and the ideas associated with it” and that a “new idea of stability ... is required.”²⁸ Their argument for the instability of a well-ordered society turns on a well-ordered society’s protection of expressive and associational liberty, and so would seem to be directed against any society that is effectively regulated by justice as fairness, or by conceptions that qualify as basically liberal, mixed or Rawlsian liberal. It is therefore not clear whether Vallier and Thrasher assume (EC₂), (EC₂), (EC₂), or (EC₅). But if they assume any of those versions then, as with Chung so with them, Schaefer’s point is that they have made an assumption they have failed to justify.

In a passage I quoted above, Schaefer says of his counterexamples that if any of them “once interpreted in concrete terms, sound like plausible descriptions of *our own* social-moral systems, then we have reason to doubt that there exist any fixed points of justice” (emphasis added). By “social-moral systems” I believe Schaefer means at least “basic institutions and the norms which regulate them.” If by “*our own* social-moral systems,” he means basic institutions of societies like the recent US, together with the conceptions of justice that have regulated them, then the passage about his counterexamples suggests that his arguments are directed against anyone who simply helps herself to (EC₃).

The equilibrium claim and the payoff for the Rawlsian project

Schaefer himself does not distinguish (EC₁)–(EC₅). While doing so is useful insofar as it helps to bring the authors Schaefer targets more clearly into view, the real interest in the distinctions among (EC₁)–(EC₅) becomes apparent when we turn to Rawls, to whose work Schaefer regularly refers.

I agree with Schaefer that the Rawls of *A Theory of Justice* accepts (EC₄).²⁹ But unlike Chung, Vallier, and Thrasher as Schaefer reads them, the Rawls of *A Theory of Justice* does not assume his version of the equilibrium claim. He offers an argument for it. His argument depends upon the educative effects of a basic structure which satisfies justice as fairness by protecting basic liberties and, crucially, guaranteeing a high social minimum. That structure helps to foster citizens’ sense of justice. It also shapes their conceptions of the good, so that citizens judge that preserving and acting on their sense of justice is good for them. When each sees that this is good for him, “the plan of life [in which each affirms his sense of justice] is his best reply to the similar plans of his associates, and being rational for anyone, it is rational for all.”³⁰ Citizens’ plans of life are then in equilibrium. When citizens act on their sense of justice, informed by justice as fairness, their society is in equilibrium. So the Rawls of *A Theory of Justice* thinks, in effect, that there is a point or justice state in justice space A —call it x_R —that is picked out as just by justice as fairness and that is a fixed or an equilibrium point. Hence (EC₄).

The Rawls of *A Theory of Justice* can therefore defend his version of the equilibrium claim without appeal to Kakutani’s theorem, and can thereby evade the force of Schaefer’s counterexamples. But well into Rawls’s development of political liberalism,

and of his account of stability-by-overlapping consensus, he made an important concession. He conceded that the focus of an overlapping consensus is more likely to be “a class of liberal conceptions” than a single conception such as justice as fairness.³¹

The conceptions to which Rawls’s concession refers are the Rawlsian liberal conceptions whose conditions I enumerated earlier. Let that class, which includes but is not limited to justice as fairness, be $\{L_1, \dots, L_n\}$. Then I take Rawls’s concession to imply that what is more likely than society’s being effectively regulated by justice as fairness is that, over time, it will always be effectively regulated by one or another member of set $\{L_1, \dots, L_n\}$ or by a hybrid of some of its members, but—perhaps—not always by the same one. I said at the outset that though Schaefer is critical of the Rawlsian approach to political philosophy, his analysis promises considerable help to those who would follow it. We are now in a position to see why.

First, Schaefer’s analysis suggests a way of interpreting a puzzling passage in *Political Liberalism*. After conceding that an overlapping consensus on $\{L_1, \dots, L_n\}$ is more likely than a consensus on justice as fairness alone, Rawls conjectures that the range within which members of $\{L_1, \dots, L_n\}$ vary might be narrow, and he speculates that justice as fairness might specify “the center of the focal class.”³² Rawls does not say what he means by “narrow” and “center,” and it is initially tempting to take his language metaphorically. But the justice space Schaefer introduced enables us to take it more literally.

Justice as fairness satisfies the conditions of Rawlsian liberal conceptions, and so is a member of $\{L_1, \dots, L_n\}$. Since the members of $\{L_1, \dots, L_n\}$ pick out different points of A as just, and since A is a subset of a space with a distance metric, we could take Rawls to mean that the points picked out as by $\{L_1, \dots, L_n\}$ are elements of a ball centered at the point picked out by justice as fairness x_R .³³ The smaller the radius of the ball, the narrower the range of liberal conceptions. If the mapping f from A to A takes every element of that ball to some (possibly different) element of the ball then, while a society with an overlapping consensus on $\{L_1, \dots, L_n\}$ may not occupy a single equilibrium point, it will not be chaotic either. For since Rawls takes justice as fairness to be the most reasonable member of $\{L_1, \dots, L_n\}$, we can read him as saying that society’s justice state will always be r -close to x_R — perhaps for quite small r .³⁴

Second, a society in which there is an overlapping consensus on $\{L_1, \dots, L_n\}$ does not conform to the definition of “well-ordered” given in *A Theory of Justice*, since that definition requires that society be effectively regulated by a single conception of justice.³⁵ This implication of Rawls’s concession required him to introduce a new idea, that of a *well-ordered liberal society*. A well-ordered liberal society is a society effectively regulated by any member of $\{L_1, \dots, L_n\}$ and can be effectively regulated by different members at different times.³⁶

So long as Rawls thought of a well-ordered society as one well-ordered by a single conception of justice—namely, his own—he could endorse what I said is his original version of the equilibrium claim:

(EC₄) Societies that are effectively regulated by justice as fairness are in equilibrium.

But I assume that Rawls still would have wanted to assert an equilibrium claim even after his concession about the likely object of an overlapping consensus. That concession, and

Rawls's new idea of a well-ordered liberal society, require him to endorse a new version of the claim:

(EC₅) Societies that are effectively regulated by Rawlsian liberal conceptions of justice are in equilibrium.

Endorsing (EC₅) would require a significant conceptual innovation in Rawls's view. According to (EC₄), the point in justice space picked out as just by justice as fairness—the point I called “ x_R ”—is a fixed or an equilibrium point. The equilibrium concept referred to (EC₄) is therefore point-valued. But now consider that a society occupying a point identified as just by any member of $\{L_1, \dots, L_n\}$ can transition to any location in the set of points identified as just by some (possibly different) member of that set *while remaining a well-ordered liberal society*. If it can transition from a point identified as just any member of $\{L_1, \dots, L_n\}$ to any location in the set of points identified as just by some member of that set *while remaining in equilibrium*, then the equilibrium concept referred to by (EC₅) would have to be set-valued instead of point-valued. Rawls's concession, therefore, requires, not just a new idea of well-orderedness, but a new concept of equilibrium to express his new equilibrium claim.³⁷

Finally, we saw that the Rawls of *A Theory of Justice* had an argument for (EC₄). Because that argument depended on the educative effects of institutions which satisfy justice as fairness specifically, and not institutions which satisfy any member of $\{L_1, \dots, L_n\}$, that argument is not available to justify (EC₅). So not only does Rawls's concession require a new equilibrium concept, it requires a new argument for the existence of an equilibrium. That argument would presumably turn on the educative effects of institutions which satisfy $\{L_1, \dots, L_n\}$. These implications of Rawls's concession have not, to my knowledge, been recognized or confronted by Rawlsians. While they are not implications that Schaefer himself draws out of his analysis, it is a great merit of “Is Justice a Fixed Point?” that it enables us to see them clearly—and, I believe, for the first time.

Some questions for the dynamic theorist

In previous sections, I have discussed Schaefer's arguments against the static theory he says is pursued by Rawls and some of his critics. In the second part of his paper, Schaefer proposes a post-Rawlsian alternative for political philosophy that he calls “dynamic theory.” That proposal nicely distills a research program that has some currency in the literature.³⁸ It is a program that would, I believe, be favored by some of the critics of Rawls I mentioned earlier³⁹—critics who continue to pursue static theory in some form because, Schaefer might say, they have not carried their critiques of the Rawlsian approach to their logical conclusion.⁴⁰ In this section, I raise some questions about that program.

“[D]ynamic theory,” Schaefer says, “accepts that values are endogenous and evolving.” While static theorists also recognize that values evolve, static theorists like Rawls famously think that there is the stock of considered judgments of justice that conceptions of justice must accommodate in reflective equilibrium. This seems to be something that Schaefer denies, for he continues immediately:

The dynamic theorist thus focuses on how these constantly changing values can be accommodated and adjusted to maintain cooperation over time. That is, the dynamic theorist focuses on a justice *process*, seeking to understand how institutions will accommodate coordination amidst a network of agents whose considered judgments are reflexively adapting to the political and social structures they help to produce. Dynamic theory examines systems that permit constantly evolving rules in response to constantly evolving values, thus eschewing the assumption of fixed point equilibria of justice.⁴¹

Note first that because the dynamic theorist “accepts that values are endogenous” and that agents’ “considered judgments ... reflexively adapt[] to the political and social structures they help to produce,” the dynamic theorist and the Rawlsian do agree on the point—which I take to be uncontroversial—that citizens’ values are affected by the institutions under which they live. As we have seen, the Rawlsian also thinks that the values that are regularly encouraged by just basic institutions help to equilibrate them. Because the dynamic theorist “accepts that values are ... evolving,” she denies this second thought. Instead, she claims that basic institutional rules must evolve to accommodate evolving values so that cooperation can be maintained. But whether the dynamic theorist is correct to deny the second Rawlsian thought, or whether the Rawlsian position can be sustained, depends upon whether what I identified as the next step of the Rawlsian project can be taken successfully. If it can be, then the dynamic theorist’s call for post-Rawlsian political philosophy is premature.

Whether or not that call is premature, the literature I cited above suggests that some philosophers find dynamic theory an attractive option. Schaefer’s lucid characterization of it opens a number of philosophical questions the dynamic theorist needs to answer.

What Schaefer calls the focus of dynamic theory—“how constantly changing values can be accommodated and adjusted to maintain cooperation over time”—raises the question of what values *should* be accommodated. Schaefer does not say what he has in mind by “accommodate,” “adjust,” and “cooperation.” But just as the utilitarian can go wrong by giving weight to preferences which have no claim to satisfaction,⁴² so—we may think—societies and theorists can go wrong by tailoring their rules to values which have no claim to accommodation. It seems natural to say that among the values which should not be accommodated are values that are contrary to justice. But this claim would not be open to the dynamic theorist if she thinks that for any time t , those rules of justice are best at t which best “maintain cooperation” in the face of whatever values people then happen to hold. If that is not what she thinks, then the dynamic theorists should say what values she thinks are unworthy of accommodation and why.

The dynamic theorist may respond that her task is “is to identify desirable features that a process of justice might possess and to determine whether these features will be robust as society shifts between distinct states of justice.”⁴³ If the processes by which a society moves through justice space robustly possess those features, then that society remains just over time.⁴⁴ But this response raises further questions.

The forces that power society’s movement through justice space include the force of ordinary citizens’ ideas about justice. They also include the power of political actors who occupy positions of importance. These actors sometimes make arguments for moving

from one point in justice space to another, and claim that the movements they favor are advances. I suspect that when many ordinary citizens and political actors speak of advancing justice, they mean to appeal to criteria of advancement by which the outcomes of “a process of justice” are to be judged. If that is right, then dynamic theory—which “focuses on a justice process”—presupposes the force of process-independent standards of justice. It will be important to see how the dynamic theorist accounts for these standards from within her theory. If she denies their validity, and if her denial of their validity becomes widely accepted, then she will not only study the movement of societies through justice space. She will change that dynamic profoundly.

Furthermore, one seemingly desirable feature of the process by which society moves through justice space would seem to be that it protects expressive, associational, and political liberty. But how does the dynamic theorist justify those protections? She cannot justify them in the way that Rawls did, for Rawls defended them by showing that his basic liberties principle would be chosen in the original position. Parties in the original position are moved by considerations of what Rawls would later call “relative stability.”⁴⁵ That is, they favor some principles over others because a society well-ordered by them is more likely to be in a stable equilibrium than the alternatives. So the dynamic theorist who doubts that any principles pick out an equilibrium point cannot appeal to that argument. The dynamic theorist must therefore have in mind some other way of justifying what she takes to be the desiderata of the processes by which social rules evolve. The question is what that is.

Let me close by pressing on the implication that dynamic theorizing is post-Rawlsian. Suppose that the dynamic theorist’s object of study is a society committed to democracy. That society is—somehow—committed to moving through justice space only in ways that are consistent with the democratic ideals in its founding documents and political culture. What process desiderata those ideals imply will need to be worked out. The dynamic theorist will want to know what expressive and associational liberties must be protected, and how extensive they must be, so that the exchange of ideas that moves society through space is democratic. She will want to know the same thing about the political liberties and their value. And if her study of the transformation function shows that society’s trajectory through space depends upon who has what opportunities, and on the concentration or dispersion of economic resources, she will want to know if democratic ideals bear on these matters. In sum, the dynamic theorist will want to know whether democratic ideals have implications for how the basic structure of the society she is studying distributes rights, liberties, income, wealth, and opportunity over time so that its trajectory is determined democratically.

It is not clear how the dynamic theorist proposes to answer that question. This is a question that Rawls can help her answer. Indeed, it is the question his theory was framed to answer, since his principles of justice are to govern the operation of the basic structure over time.⁴⁶ Schaefer seems to take Rawls to be the static theorist *par excellence*. If he is and if his theory is indeed framed to identify and defend “desirable features of a process of justice,” then the distinction between static and dynamic theory seems not to be a distinction between mutually exclusive options. If it is not, then dynamic theorizing may not provide a post-Rawlsian approach to political philosophy after all.

Acknowledgements

I am grateful to Chris Kolda and Benjamin Straumann for correspondence about some of the central ideas of this paper and to Kaushik Basu, Ryan Muldoon, Alex Schaefer, Kevin Vallier, David Wiens, Andrew Williams, and anonymous referees for *Politics, Philosophy & Economics* for their helpful comments on previous drafts. The paper also benefited from audience reactions at the February 2022 meeting of the PPE Society.

Declaration of conflicting interests

The author declared no potential conflicts of interest with respect to the research, authorship, and/or publication of this article.

Funding

The author received no financial support for the research, authorship, and/or publication of this article.

Notes

1. For example, Forrester (2021).
2. Kogelmann (2017: 663). The most prominent of these critics, the late Gerald Gaus, said that the object of Rawlsian ideal theory is “ultimately a mirage” and an “illusion,” and a “dangerous” one at that; see Gaus (2016: 246).
3. Rawls (1999).
4. Kogelmann (2017).
5. Thrasher and Vallier (2018: 398).
6. Gaus (2018: especially pp. 677–80).
7. Schaefer (2021).
8. Rawls (1999: 4).
9. All quotes in this paragraph are from Schaefer (2021: 1).
10. Schaefer (2021: 4). Gerard Debreu, who won the 1983 Nobel Prize in Economics for his contributions to general equilibrium theory, once described Kakutani’s theorem as “the most powerful tool for the proof of existence of an economic equilibrium”; Debreu (1982: 698) For use of the theorem in establishing the existence of a competitive (Walrasian) equilibrium, see McKenzie (1981). For John Nash’s use of it in establishing the existence of equilibria in games, see Nash (1950). These landmark results, and the many lesser results that Kakutani’s theorem is used to prove, confirm Schaefer’s claim that appeal to Kakutani’s theorem is indeed standard. The latter results are too extensive to survey here; for one example see Acemoglu and Jensen (2015: 625).
11. The original statement and proof of theorem can be found by Kakutani (1941).
12. Schaefer (2021: 5).
13. Schaefer (2021: 4).
14. In Schaefer’s defense, Rawls is not entirely consistent on this point. At Rawls (1999: 9), he seems to equate a conception of justice with a set of distributive principles, but at (1999: 221) he seems to have in mind the wider denotation of the phrase stated in the text. That he

intended the phrase to have the wider denotation is clear within a couple of years after the initial, 1971 publication of Rawls (1999); see Rawls (1974–75: 13).

15. I am grateful to David Wiens for helpful correspondence about this and the preceding paragraph.
16. Rawls seems to imply that it is, for he says that the history of moral philosophy has turned up a small number of conceptions, or at least of plausible ones—hence the brevity of the menu presented to parties in the original position; see Rawls (1999: 106–7).
17. Schaefer (2021: 7).
18. Schaefer (2021: 5).
19. Schaefer (2021: 5).
20. Ingham and Wiens (2022: 317).
21. As Schaefer himself recognizes at (2021: 5).
22. As observed by Ingham and Wiens (2022: 317).
23. See Schaefer (2021: 9–10), where there is no mention of a burden of proof.
24. The term “mixed conceptions” is Rawls’s; Rawls (1999: 277–85).
25. Rawls (1995: 228–29).
26. Rawls (1995: xlviii).
27. Chung (2020: 85).
28. Thrasher and Vallier (2018: 398).
29. See Schaefer (2021: 4).
30. Rawls (1999: 497).
31. Rawls (1995: 164).
32. Rawls (1995: 167–68). That Rawls continued to describe justice as fairness as the “center of a focal class” implies that that conception of justice continued to play a special role in his thinking even after his concession; thus at *Political Liberalism*, p. xlvii, he says that in his view, justice as fairness is the “most reasonable” of what I have called “Rawlsian liberal conceptions.” In correspondence, Samuel Freeman informs me that by the time of his last, unpublished revisions to (1995), Rawls abjured any special place for his own conception.
33. Given a metric space $(X; d)$ and a point $p \in X$, the open ball of radius r around p is $B_r(p) = \{q \in X: d(p, q) < r\}$.
34. The device of justice space may also help us to understand what I have called “hybrids”—that is, hybrids of members of $\{L_1, \dots, L_n\}$. Consider two points picked out as just by any members of $\{L_1, \dots, L_n\}$. Then perhaps a hybrid is a conception of justice that picks out a subset of the convex combinations of those two points. I imagine that well-ordering by a hybrid is an outcome of political compromise. Kogelmann recognizes the possibility of compromises among adherents of various conceptions of justice, but denies that the outcome is itself a well-ordering; see Kogelmann (2017: 671).
35. As Kogelmann points out; see Kogelmann (2017: 667).
36. Rawls (1995: xxxvi); on the introduction of this new idea, see Freeman (forthcoming).
37. According to Voorneveld, Kets and Nordel, “a point-valued solution concept assigns to each game a collection of strategy profiles, i.e., a set of points in the strategy space of the game. A set-valued solution concept assigns to each game a collection of product sets of strategies, i.e., a set of product sets in the strategy space of the game.” See their (2005: 480, note 1). The notions of point- and set-valued solution concepts may seem to be misapplied here, since (EC_4) and (EC_5) do not refer to games or strategy-combinations.

Briefly: I assume that a society's satisfaction of a conception of justice results from the behavior of its citizens. I describe the solution concept employed in (EC₄) as "point-valued" because there is a single combination of citizens' behaviors or "strategies" that accounts for why a society well-ordered by justice as fairness occupies the equilibrium point x_R : the combination in which each affirms "[his sense of justice] [a]s his best reply to the similar plans of his associates"; see note 30 above and accompanying text. I describe the equilibrium concept employed in (EC₅) as "set-valued" because the equilibrium it asserts can result from (a critical number of) citizens together "playing" any combination of—that is, any member of the product space of—Rawlsian liberal conceptions.

38. Muldoon (2016, 2017)
39. See Thrasher and Vallier (2018).
40. Thus at Schaefer (2021: 11), Schaefer credits Thrasher and Vallier with, "a major advance over prevailing static theories," but immediately pronounces their approach "insufficiently radical."
41. Schaefer (2021: 10–11, emphasis original).
42. Rawls (1999: 395).
43. Schaefer (2021: 11).
44. Might the static theorist who is interested in the long-run transition from the status quo to a just and stable society draw on dynamic theory? Perhaps, but she would reject the claim that robust possession of process desiderata is a sufficient condition of justice.
45. Rawls (1999: 154–55). The question of relative stability is discussed at length, and in those terms, at Rawls (1999: 434–41). Of course, that a conception of justice is more likely to be stable than the alternatives, or likely to be more stable than the alternatives, does not imply that it will be perfectly stable.
46. See, for example, Rawls (1999: xv).

References

- Acemoglu D and Jensen MK (2015) Robust comparative statics in large dynamic economies. *Journal of Political Economy* 123(3): 587–640.
- Chung H (2020) The Well-Ordered Society Under Crisis: A Formal Analysis of Public Reason vs. Convergence Discourse. *American Journal of Political Science* 64(1): 82–101.
- Debreu G (1982) Chapter 15: existence of economic equilibrium. In: Arrow K and Intriligator MD (eds) *Handbook of mathematical economics, volume 2*. Amsterdam: Elsevier, 697–742.
- Forrester K (2021) *In the Shadow of Justice*. Cambridge, MA: Harvard Press.
- Freeman S (forthcoming) Reasonable political conceptions and the well-ordered liberal society. In: Weithman (ed) *Rawls's A Theory of Justice at Fifty*. Cambridge, UK: Cambridge University Press.
- Gaus G (2016) *The Tyranny of the Ideal*. Princeton, NJ: Princeton University Press.
- Gaus G (2018) The complexity of a diverse moral order. *The Georgetown Journal of Law and Public Policy* 16: 645–680.
- Ingham S and Wiens D (2022) The stability of the just society: why fixed point theorems are beside the point. *Journal of Ethics and Social Philosophy* 23(2): 312–319.
- Kakutani S (1941) A generalization of Brouwer's fixed point theorem. *Duke Mathematical Journal* 8(3): 457–459.

- Kogelmann B (2017) Justice, diversity and the well-ordered society. *The Philosophical Quarterly* 67: 663–685.
- McKenzie L (1981) The classical theorem on the existence of competitive equilibrium. *Econometrica* 49(4): 819–841.
- Muldoon R (2016) *Social Contract Theory for a Diverse World: Beyond Tolerance*. New York: Routledge.
- Muldoon R (2017) Discussion with Frazer, M. Available at <https://peasoup.deptcpanel.princeton.edu/2017/03/ndpr-discussion-ryan-muldoons-social-contract-theory-diverse-world-beyond-tolerance/>.
- Nash J (1950) Equilibrium points in N-person games. *Proceedings of the National Academy of Science* 36: 48–49.
- Rawls J (1995) *Political Liberalism*. New York: Columbia University Press.
- Rawls J (1999) *A Theory of Justice*. Cambridge, MA: Harvard University Press.
- Rawls J (1974–75) The independence of moral theory. *Proceedings and Addresses of the American Philosophical Association* 48: 5–22.
- Schaefer A (2021) Is Justice a Fixed Point? *American Journal of Political Science*. June 15, 2021 <https://doi.org/10.1111/ajps.12631>.
- Thrasher J and Vallier K (2018) Political stability in the open society. *American Journal of Political Science* 62(2): 398–409.
- Voorneveld M, Kets W, and Nordel H (2005) An axiomatization of minimal curb sets. *International Journal of Game Theory* 33: 479–490.

Author biography

Paul Weithman is the Glynn Family Honors Professor of Philosophy at the University of Notre Dame. He is the author of *Why Political Liberalism?* (Oxford: Oxford University Press, 2011), *Rawls, Political Liberalism and Reasonable Faith* (Cambridge, UK: Cambridge University Press, 2018) and the editor of Rawls's *A Theory of Justice at Fifty* (Cambridge, forthcoming).